

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY  
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE  
COURT CALENDAR FOR AUGUST 20, 2026  
DEPARTMENT 30  
JUDICIAL OFFICER: VIRGINIA M GEORGE

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PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW  
BY THE JUDGE

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Counsel and parties are encouraged to appear remotely through Zoom videoconferencing,  
**unless otherwise ordered by the Court.** Department 30 is open for in person appearances.

Please note the following contact information for your reference:

**Zoom videoconferencing for Department 30, Judge George:**

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

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**IF YOU HAVE MATTERS IN BOTH**  
**DEPARTMENT 30 AND DEPARTMENT 38,**  
**PLEASE NOTIFY THE BAILIFFS**  
**THE MORNING OF YOUR APPEARANCE.**

**THANK YOU.**

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**1A.**  
9:00 AM

**MSP17-01343      ESTATE OF: EULA V. AVERHART**  
HEARING IN RE: STATUS REPORT OF ADMINISTRATION AND REQUEST TO CONTINUE  
ADMINISTRATION FILED ON 05/30/23 BY JOHN RILEY

**Need:**

1. Appearances
2. Proof of mailing with the right to accounting advisement under PrC § 10950 information as provided in PrC § 12201(b).
3. Proposed Order to include provision that further status report and/or petition for distribution must be filed

**Notes:**

1. Per 01/23/25 minute order, Petition for Final Distribution was to be filed on or before 04/25/25.
2. Administrator John Riley's Verified Final Petition for Distribution of Estate filed 4-30-2026, is set for hearing 8-27-2026.

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**1B.**

9:00 AM

**MSP17-01343      ESTATE OF: EULA V. AVERHART**

HEARING IN RE: PETITION FOR ORDER CONFIRMING SALE OF REAL PROPERTY FILED BY JOHN RILEY  
ON 09/03/2025.

Need:

1. Appearances
2. Bond in the amount determined (plus overbid, if any) before order can be signed.
3. Reappraisal of realty for sale. PrC§ 10309
4. Counsel to appear. CRC § 7.452.

Notes:

- A. Real property is located at 518 S. 18<sup>th</sup> Street, Richmond, CA
- B. Sale price is \$300,000.00.
- C. Overbid price is \$315,500.00.
- D. Personal representative is listed as purchaser. See ¶ 10501 et seq.
- E. Real property was sold to petitioner 6-23-2025.
- F. Creditor Caterpillar Financial Services Corporations' Objection filed 4-23-2026.
- G. Per 4-28-2026 minute order, atty. Kimberly Leding appeared in objection on behalf of Caterpillar Financial.

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| <b>3.</b><br>9:00 AM | <b>MSP19-01581      MATTER OF: THE TOWNING FAMILY TRUST DATED AUGUST 11, 2008</b><br>HEARING ON PETITION IN RE: AMENDED FIRST AND FINAL ACCOUNT OF LEYLA S. ZABIH AS SUCCESSOR TRUSTEE; REDUCTION OF BOND; APPROVAL OF FEES FOR SUCCESSOR TRUSTEE AND ATTORNEYS' FEES AND COSTS; FOR REDUCTION AND DISCHARGE OF BOND UPON FILING RECEIPTS FILED ON 2/4/2025 BY LEYLA ZABIH<br><br>Need:<br><ol style="list-style-type: none"><li>1. Appearances to report status, including settlement</li><li>2. Order After Hearing approved as to form, pursuant to 4-23-2026 minute order</li></ol><br>Notes:<br><ol style="list-style-type: none"><li>1. Transfer to conservatorship would be more accurately described as a distribution, not a disbursement.</li><li>2. Notice of Nonpayment of Bond Premium filed 5-7-2026.</li></ol> |
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**4.** **MSP21-00442 THE EMMA ENKHAMGALAN MINOR'S SETTLEMENT TRUST**  
9:00 AM HEARING IN RE: PETITION TO APPROVE 3RD AND FINAL ACCOUNT & REPORT OF TRUSTEE FROM 8-1-24 THROUGH 4-30-25, APPROVE TRUSTEE'S & ATTY'S FEES FILED BY HERB THOMAS ON 4-24-26.

Petition Approved  
Proposed Order Submitted  
No Appearance Required

Note: Petition to Approve First Account and Report filed by Heather Fisher is set for hearing 11-17-2026.

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- 5.** **P24-01163** **ESTATE OF: SANDRA VANHULLE**  
9:00 AM HEARING IN RE: WAIVER OF ACCOUNT, REPORT OF EXECUTRIX & PETITION FOR FINAL DISTRIBUTION  
FILED BY STACY DALY ON 4-23-26.
- Need:
1. Declaration addressing creditor claim filed by Capital One on 8-5-2024 for \$7,180. PrC § 10900; CRC § 7.403.
  2. Verified declaration by petitioner to state whether notice was given, or needed, to the Director of the California Victim Compensation Board, i.e., does petitioner have any reason to believe any heir has previously been confined in any prison or other correctional facility. PrC §§ 216, 9202(b)
  3. Verified declaration by petitioner to clarify statement at ¶ 15 that no assets changed in form. Real property was sold.
  4. Verified declaration by petitioner to include list of assets on hand for distribution and approximate amount of cash to be distributed to heir. LR 7.301
  5. Verified declaration by petitioner to include sale price of real property so court can determine whether there was a loss on sale that should be included in statutory fee calculation.
  6. Verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705. Specifically, must state any loss on sale as relates to maximum statutory fees allowable, if any. Also, calculation is incomplete. Need fee base.
  7. Proposed Order

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**6.** **P24-01547** **MATTER OF: THE SHELLY RUNGE SPECIAL NEEDS TRUST**  
9:00 AM HEARING IN RE: PETITION FOR APPROVAL OF FIRST ACCOUNT & REPORT OF SUCCESSOR TRUSTEE  
HEATHER FISHER FILED ON 4-27-26.

Need:

1. Verified declaration by petitioner to clarify amount of additional property received. 10<sup>th</sup> account of former trustee reflects carry value of distribution of \$158,757.49 and market value of \$129,107.92. This accounting reflects additional property received of \$129,032.09.
2. Verified declaration by petitioner to show nature and difficulty of tasks performed, results achieved, benefit of services to the beneficiary, and to specify the amount requested for each category of service provided. CRC § 7.776

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**7.** **P24-01774** **ESTATE OF: RUDY FLORES**  
9:00 AM HEARING IN RE: OSC WHY A PRELIMINARY INJUNCTION SHOULD NOT BE ISSUED PER ORDER FILED  
7/16/26 BY LEYLA ZABIH

Need appearances

Notes:

1. Order for Temporary Restraining Order; and Order to Show Cause Re Preliminary Injunction filed 7-16-2026.
2. Opposition filed by Carrington Mortgage Services, LLC 8-6-2026.



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**8.** **P24-01821** **ESTATE OF: RALPH ZAPPALA**  
9:00 AM HEARING IN RE: AMENDED PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION  
WITH IAEA FILED BY JOHN W BUSBY II ON 05/13/2025 - POSSIBLY SET EVIDENTIARY HEARING

Need:

1. Appearances to report status, including meet and confer
2. Order for Probate Form DE-140. Order lodged 8-6-2026 is partially illegible.

The Court is waiting for these items:

Appearance by atty. Thomas Tagliarini, pursuant to 5-14-2026 minute order

Notes:

1. Per 5-14-2026 minute order, atty. Tagliarini is ordered to appear. Failure to appear may result in objections being waived or stricken.
2. Letters of Special Administration issued to John W. Busby, II 7-2-2026, expire 3-26-2027.

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| <b>9A.</b> | <b>P25-00113</b>                                                                                                                                                       | <b>MATTER OF: TRUST B CREATED UNDER THE DANIEL N AND LAURA CATRINA<br/>REVOCABLE TRUST OF MAY 11, 1993</b> |
| 9:00 AM    | HEARING IN RE: PETITION TO REFORM TRUST FILED BY LAURA CATRINA ON 09/10/2025 - RETURN<br>FROM BRESLIN MEDIATION                                                        |                                                                                                            |
|            | Need:<br><ol style="list-style-type: none"><li>1. Appearances to report status</li><li>2. Proof of mailing to Gigi Annette Catrina</li><li>3. Proposed Order</li></ol> |                                                                                                            |

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| <b>9B.</b> | <b>P25-00113</b>                                                                                                                                     | <b>MATTER OF: TRUST B CREATED UNDER THE DANIEL N AND LAURA CATRINA<br/>REVOCABLE TRUST OF MAY 11, 1993</b> |
| 9:00 AM    | HEARING IN RE: PETITION TO COMPEL TRUSTEE TO PROVIDE INFORMATION AND ACCOUNT FILED BY<br>NICHOLAS CATRINA ON 1/17/25 - RETURN FROM BRESLIN MEDIATION |                                                                                                            |
|            | Need appearances to report status                                                                                                                    |                                                                                                            |
|            | Note: Response and Objection filed by Laura Catrina 07/18/25.                                                                                        |                                                                                                            |

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| <b>9C.</b> | <b>P25-00113</b>                                                                                                                                 | <b>MATTER OF: TRUST B CREATED UNDER THE DANIEL N AND LAURA CATRINA<br/>REVOCABLE TRUST OF MAY 11, 1993</b> |
| 9:00 AM    | HEARING IN RE: PETITION FOR ORDER APPROVING SETTLEMENT AGREEMENT FILED BY LAURA<br>CATRINA ON 7/21/2026                                          |                                                                                                            |
|            | Need:<br>1. Appearances<br>2. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled<br>to receive notice. PrC § 17203 |                                                                                                            |

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|------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>11.</b> | <b>P25-01608</b>                                                                                                                                                                                                        | <b>MATTER OF: DARIN ROTHER AND MICHAEL ROTHER AS DESIGNATED TRUSTEES<br/>AND BENEFICIARIES OF THE LIESELOTTE ROTHER REVOCABLE TRUST DATED<br/>AUGUST 30, 2024</b> |
| 9:00 AM    | HEARING IN RE: TO PRECLUDE REGINA RUIZ FROM USING TRUST ASSETS TO PAY ATTORNEY'S FEES,<br>ORDER AN ACCOUNTING OF ALL SUMS PAID FOR FEES, & RETURN THAT SUM TO THE TRUST FILED BY<br>DARIN & MICHAEL ROTHER O N 4-23-26. |                                                                                                                                                                   |
|            | Need appearances                                                                                                                                                                                                        |                                                                                                                                                                   |
|            | Note: Related matters are set for hearing 9-22-2026 and 10-6-2026.                                                                                                                                                      |                                                                                                                                                                   |

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**12.**

9:00 AM

**P25-01647**

**MATTER OF: KAY YAMAGATA 2009 LIVING TRUST**

HEARING IN RE: PETITION TO INVALIDATE FIRST AMENDMENT AND RESTATEMENT OF THE KAY YAMAGATA 2009 LIVING TRUST FILED ON 09/16/25 BY UNIVERSITY OF CALIFORNIA SAN FRANCISCO FOUNDATION - RETURN FROM BRESLIN MEDIATION

Need:

1. Appearances to report status, including mediation ordered 4-28-2026
2. Proposed Order

Notes:

1. Objection filed by Glenn Yamagata 01/16/26.
2. Respondent Vivian Yamagata's Response, Opposition and Objection filed 1-16-2026.
3. Motion to compel production of records filed by Univ. of California, San Francisco Foundation is set for hearing 10-6-2026.

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**13A. P25-02235 MATTER OF: THE DIDERO FAMILY TRUST, DATED SEPTEMBER 7, 1989, AS AMENDED AND RESTATED**

9:00 AM HEARING IN RE: MEDIATION STATUS-SET PER ORDER FILED 4/28/26.

Need appearances to report status, including mediation ordered 4-28-2026

Note: American Sign Language Interpreter is requested.

**13B. P25-02235 MATTER OF: THE DIDERO FAMILY TRUST, DATED SEPTEMBER 7, 1989, AS AMENDED AND RESTATED**

9:00 AM HEARING IN RE: PETITION FOR JUDICIAL CONSTRUCTION OF THE DIDERO FAMILY TRUST FILED ON 12/12/25 BY MARK J. DIDERO

Need:

1. Appearances to report status, including mediation ordered 4-28-2026
2. Proposed Order

Note: Objection and Response filed by Linda A. Roberts 3-27-2026.

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| 15.                                                                                                                                                                                                                                                                                                                                                                                                                                                   | <b>P25-02257</b>                                                                                       | <b>MATTER OF: THE REVOCABLE TRUST DECLARATION OF STANLEY C. WILLIAMS<br/>DATED FEBRUARY 28, 2000; RESTATED SEPTEMBER 3, 2015, AND AMENDMENTS<br/>IN 2016 AND 2017</b> |
| 9:00 AM                                                                                                                                                                                                                                                                                                                                                                                                                                               | HEARING IN RE: PETITION TO INVALIDATE PURPORTED TRUST AMENDMENTS FILED ON 12/22/25 BY<br>LISA WILLIAMS |                                                                                                                                                                       |
| Petitioner, daughter, still must do the following:                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                        |                                                                                                                                                                       |
| <ol style="list-style-type: none"><li>1. Appear at the hearing</li><li>2. File a verified declaration by petitioner to state current addresses and relationships of all persons entitled to receive notice. LR 7.112</li><li>3. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 17203</li><li>4. Submit a proposed Order</li></ol> |                                                                                                        |                                                                                                                                                                       |

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| <b>16.</b><br>9:00 AM | <b>P26-00013      ESTATE OF: CARLOS BRIZUELA-RODAS</b><br>HEARING IN RE: SPOUSAL PROPERTY PETITION FILED ON 01/05/26 BY NORA TRINIDAD NAVAS CASCO |
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Need:

1. Proof of mailing to Luis Brizuela Navas at address in Supplemental Decl. filed 4-3-2026, or waiver of notice. Proof of Service attached to Notice filed 1-21-2026 reflects mailing to him at an address other than that listed.
2. Verified declaration by petitioner to include Attachment 7.b., not attached as indicated, and not attached to Suppl. Decl. filed 1-21-2026
3. Spousal or Domestic Partner Property Order Form DE-226



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| <b>17.</b> | <b>P26-00803</b>                                                                                                                | <b>MATTER OF: THE LEONARD N. BOWE FAMILY TRUST DATED APRIL 7, 2025 (THE "TRUST")</b> |
| 9:00 AM    | HEARING IN RE: PETITION FOR VALIDATION OF TRUST; INSTRUCTIONS; DETERMINE CLAIM TO PROPERTY FILED ON 4/30/26 BY TIMOTHY M. HYDEN |                                                                                      |
|            | Need appearances                                                                                                                |                                                                                      |

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**18.**

9:00 AM

**P26-00833**

**ESTATE OF: RAY SUNIA**

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION W/ IAEA FILED ON 5/7/26 BY PAULO SUNIA

Petitioner, brother, still must do the following:

1. Appear at the hearing
2. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 8100; LR 7.151(e)
3. File Waiver of Bond by Heir or Beneficiary on mandatory Judicial Council Form DE-142 or bond will be fixed at \$254,000.00. PrC § 8481

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| <b>19A.</b><br>10:30 AM | <b>P26-01177      ESTATE OF: ROGER STANTON</b><br>HEARING IN RE: FOR ORDERS TO SHOW CAUSE AND TEMPORARY RESTRAINING ORDERS (SET PER EX PARTE ORDER FILED 7/8/26) |
|-------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------|

Need appearances

Note: Respondent Jaclyn D. Childs' Opposition filed 7-8-2026.

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**19B.**

10:30 AM

**P26-01177**

**ESTATE OF: ROGER STANTON**

HEARING IN RE: PETITION FOR: FINANCIAL ELDER ABUSE ET AL FILED ON 07/05/2026 BY BRIAN L STANTON

Need:

1. Appearances
2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
3. Evidence of written demand for accounting as required by PrC §17200(b)(7).
4. Proposed Order

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| <b>19C.</b><br>10:30 AM | <b>P26-01177      ESTATE OF: ROGER STANTON</b><br>HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION W/ IAEA FILED ON 6/25/26 BY BRIAN L. STANTON<br><br>Need appearances<br><br>Note: Letters of Special Administration issued to Brian L. Stanton expire 03/26/2027. |
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**22.** **MSP21-00080** **GDNSHIP OF: ZAYDEN ZAIRE PATTERSON**  
1:30 PM COURT TRIAL HEARING DAY 3 - IN PERSON

Drop.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY  
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**23.**

1:30 PM

**MSP23-01008      CONS. OF: VICTOR VIEBIG**

PETITION FOR AUTHORIZATION TO ELECT DNR/DNI FOR CONSERVATEE FILED 08/12/2026 BY LEYLA ZABIH

Need:

1. Appearances
2. Verified declaration by petitioner to include doctor's declaration in support of request, pursuant to Order filed 8-12-2026
3. Proposed Order

The Court is waiting for these items:

Report of atty. Daniel Vaughan